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Draft national direction confirms fears for the environment

28 August 2026

The Government's first attempt to show how its new resource management system will work in practice has done little to allay our concerns that the reforms will result in worse outcomes for the environment.

This week the Government released an exposure draft of its first National Policy Direction (NPD), the highest-level instrument that will implement the Planning and Natural Environment Bills, which are being heard by Parliament under urgency this week.

"Unfortunately, our initial read of the 93-page document reinforces our predictions that the new system will be terrible for the natural world.

"One of the NPD's main jobs is to sort out conflicts between the Bills' environmental and development goals, because the legislation itself deliberately avoids creating a hierarchy between them.

"You might reasonably expect something as fundamental as safeguarding the life-supporting capacity of the environment to prevail where there is a direct conflict with economic growth.

"That hasn't happened. Instead, development is repeatedly given the upper hand across chapters that are largely focused on sectors like housing, infrastructure and primary production.

"Among other things, the draft NPD:

- Contemplates environmental limits being breached, with problems potentially addressed years later through non-regulatory action plans.
- Requires councils to enable the continued operation of commercial forestry activities and mines even where limits are breached.
- Prevents councils from requiring consent for farming activities if they have a farm plan, but does not clearly require that plan to adhere to environmental limits.
- Requires a 'higher standard' for imposing biodiversity controls on private land.
- Prevents plans from including urban growth boundaries.
- Enables urban development in outstanding natural landscapes, if it meets criteria set out in national standards.

"Repeated reference to national standards is another major problem with the NPD. It kicks the resolution of key conflicts further down the road. So instead of providing the certainty that everyone needs, the draft often just restates the general requirements of the Bills or includes a shopping list of vague outcomes.

"For example, councils are variously directed to protect air quality while taking home-heating needs into account, to ensure development does not 'unreasonably affect' receiving environments, and to enable rural development and infrastructure while safeguarding environmental life-supporting capacity. No real clarity is provided by statements like these.

"There are some positive sounding aspirations in the draft NPD. For example, it supports nature-based solutions and requires the mapping and protection of significant indigenous biodiversity and the creation of regional biodiversity strategies. But it doesn't explain how councils are meant to provide effective biodiversity protection when the Government's regulatory relief regime may require rates-capped councils to compensate landowners for imposing those protections. Regulatory relief, in practice, is likely to kneecap any protective directions in the NPD.

"Overall, this document is environmentally weak because the primary legislation it sits under is environmentally destructive. As the Bills have progressed, the direction of travel has generally been to make the system worse for the natural environment rather than better, despite detailed and constructive engagement by EDS and others. A fundamental rethink is needed if these reforms are to be workable and endure.

"EDS will continue to fight for a resource management system that protects our environment, using all possible avenues to hold those in power to account," concluded Dr Severinsen.

Feedback on the exposure draft of the NPD is open until 16 October 2026.

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